UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 26-1250

MANISH KUMAR,
Petitioner-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

On Appeal from the United States District Court
for the District of Massachusetts
(Nos. 1:24-cv-12710-MLW; 1:21-cr-10157-AK)

APPELLANT'S RESPONSE IN OPPOSITION TO APPELLEE'S MOTION FOR SUMMARY DISPOSITION, WITH MOTION FOR LEAVE TO FILE OUT OF TIME (TO THE EXTENT NECESSARY) AND ALTERNATIVE REQUEST FOR VACATUR AND REMAND FOR AN EVIDENTIARY HEARING

Appellant Manish Kumar, pro se, asks the Court to deny the Government's motion for summary disposition under 1st Cir. R. 27.0(c), filed September 11, 2026 ("Mot."). The Court has not set a date for a response to that motion and has not ruled on it. To the extent the Court considers this response late, Mr. Kumar asks for leave under Fed. R. App. P. 26(b) to file it now. In the alternative to denial, he asks the Court to vacate and remand for an evidentiary hearing on the proffer-protection claim.

References to "ECF" are to the district court docket in No. 1:21-cr-10157. Four record exhibits are attached: Exhibit A is ECF 130, the district court's

Memorandum and Order of August 28, 2025; Exhibit B is the docket report pages showing ECF 137, 139 and 141; Exhibit C is ECF 122 (the Government's opposition to the § 2255 motion) with ECF 122-1 (the Rhode Island proffer letter) and 122-2 (the Basil affidavit); and Exhibit D is ECF 75.

I. THIS RESPONSE IS TIMELY; ALTERNATIVELY, THERE IS GOOD CAUSE FOR LEAVE

1. The Government served its motion by first-class mail on September 11, 2026, addressed to Mr. Kumar at FCI Fort Dix. (Mot., Certificate of Service.) Mr. Kumar is a pro se prisoner and is not a participant in the Court's electronic filing system. The docket reflects no order setting a date for a response to the motion and no order ruling on it. The only action since the motion was filed is the September 30, 2026 order granting the Government's separate motion to stay briefing as unopposed. Mr. Kumar submits that, in these circumstances, this response is timely.

2. If the Court nonetheless applies the 10-day period of Fed. R. App. P. 27(a)(3)(A), plus the three days Rule 26(c) adds for service by mail, that period ended on September 24, 2026. In that event Mr. Kumar asks for leave to file now. Rule 26(b) provides that "[f]or good cause, the court may extend the time prescribed by these rules or by its order to perform any act, or may permit an act to be done after that time expires."

3. Good cause exists. Mr. Kumar is a federal prisoner, proceeding pro se, who depends on the prison mail system. The record in this case shows at least two

instances of court mail failing to reach him. On April 17, 2026, the district court found that he "adequately claims that he did not receive notice of entry of the Order within 21 days of its entry," noted that "[t]he docket also does not indicate if the Order was mailed to Mr. Kumar at the prison facility where he is imprisoned," and concluded that "[t]hese facts cumulatively provide sufficient evidence that Mr. Kumar did not receive notice of the Order." ECF 137 (Ex. B). The court reopened his time to appeal, and noted that the Government "did not oppose the Motion or contest the Declaration." *Id.* On May 4, 2026, the district court docket recorded: "Mail sent to Manish Kumar Returned as Undeliverable." ECF 139 (Ex. B).

4. The Government is not prejudiced. At its own request briefing is stayed, its brief is not due, and the Court has not acted on its motion. A response filed now costs the Government nothing. Mr. Kumar asks the Court to consider it.

II. WHY SUMMARY DISPOSITION SHOULD BE DENIED

A. The standard. Under 1st Cir. R. 27.0(c), the Court may affirm "if it shall clearly appear that no substantial question is presented." The question is not whether the Government will probably win. It is whether it clearly appears that nothing substantial remains to be decided. That standard is not met where, as here, the claim turns on facts that no court has found.

B. The district court has already found this issue debatable. Judge Kelley certified the proffer-protection claim, and explained why:

> "Reasonable jurists could disagree with this finding, as well as with whether counsel's failure to obtain an immunity agreement caused Defendant to suffer prejudice. Accordingly, the Court will issue a Certificate of Appealability as to this ground." ECF 141 (Ex. B).

A certificate issues when a prisoner shows "that jurists of reason could disagree with the district court's resolution of his constitutional claims or that jurists could conclude the issues presented are adequate to deserve encouragement to proceed further." *Miller-El v. Cockrell*, 537 U.S. 322, 327 (2003). A claim can be debatable "even though every jurist of reason might agree, after the [certificate of appealability] has been granted and the case has received full consideration, that petitioner will not prevail." *Id.* at 338. A certificate does not by itself bar summary affirmance. But a claim that a district judge has just found debatable among jurists of reason cannot "clearly" present "no substantial question." The Government's motion notes that a certificate issued (Mot. 5), but does not mention this finding.

III. THE RECORD ON THE PROFFER CLAIM

The following facts come from the district court record, including the Government's own filings.

- Beginning on the day of his arrest, August 25, 2019, and ending on February 27, 2020, Mr. Kumar met with federal authorities, "including in the District of Massachusetts." "During eleven proffer sessions, Kumar provided information and authorized federal investigators to access various personal electronic devices and his Apple ID and email accounts." ECF 130 at 3-4 (Ex. A).
- He had a written proffer letter from the District of Rhode Island, dated August 27, 2019. ECF 122-1 (Ex. C). The Government "cannot locate a signed copy of the proffer letter." ECF 122 at 3 n.2 (Ex. C). He had no

proffer letter from the District of Massachusetts. *Id.* at 3.

- Paragraph 1 of the Rhode Island letter provides: "No proffered statement or other information provided by your client will be used against him directly in the case-in-chief of any criminal case, provided that his statements and information are completely truthful and candid." ECF 122-1 at 1 (Ex. C).
- On February 27, 2020, Mr. Kumar met with Massachusetts prosecutors and agents in Boston, with counsel. His statements at that meeting are the basis for Count 3. ECF 130 at 4 (Ex. A); ECF 122-2 ¶ 3 (Ex. C).
- The Government states that, before that meeting, "the government was not investigating the defendant for drug crimes. He was a cooperating witness." ECF 122 at 14 n.5 (Ex. C). Judge Wolf found that "[t]he information Kumar provided in his last proffer session was the starting point for the government's investigation of him." ECF 130 at 20 (Ex. A).
- Defense counsel told the district court that "[t]he primary evidence in support of the charges comes from the statements Mr. Kumar made to law enforcement during the investigation, and the data from his personal electronics which he gave to law enforcement." ECF 75 at 2 (Ex. D).
- The Government asked the district court to deny the motion "without holding an evidentiary hearing." ECF 122 at 1 (Ex. C). The docket reflects none. Judge Wolf denied the claim on the papers, reasoning that "[p]roffer letters typically do not protect a person from prosecution for making false statements," that Mr. Kumar had not shown "that the Rhode Island letter was binding on the federal prosecutors in other jurisdictions, including

Massachusetts," and that "there is no evidence that the agreement would have protected against the derivative use of Kumar's statements." ECF 130 at 13-14 (Ex. A).

IV. ARGUMENT

A. The Government's own premise defeats its prejudice argument. Mr. Kumar does not contend that any proffer letter would have protected the false statements of February 27, 2020. His claim concerns the rest of the case, and his decision to plead. The Government argues that a Massachusetts letter would have been no help because proffer letters "typically" do not protect against false-statement prosecutions or derivative use (Mot. 6 (quoting ECF 130 at 13-14)), and, as it told the district court, because such a letter is "standard" (ECF 122 at 8). But the only proffer letter in the record, which the Government relies on as the "standard" form, also contains a protection the Government and the district court never addressed: no direct use of truthful proffered statements in the case-in-chief of any criminal case. ECF 122-1 ¶ 1. If a Massachusetts letter would have matched the Rhode Island letter, as the Government says, it would have barred the Massachusetts prosecution from using Mr. Kumar's truthful statements against him directly. That cannot be reconciled with the Government's assertion that there is no "realistic possibility that any evidence would have been suppressible." Mot. 6-7.

B. The prejudice question under *Hill* was never decided on a record. Prejudice in a plea case asks whether there is "a reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on

going to trial." *Hill v. Lockhart*, 474 U.S. 52, 59 (1985); *United States v. Caramadre*, 807 F.3d 359, 371 (1st Cir. 2015) (quoting *Moreno-Espada v. United States*, 666 F.3d 60, 64 (1st Cir. 2012)); Mot. 6. Judge Wolf's ruling addresses whether a letter would have protected against a false-statement prosecution and derivative use. ECF 130 at 13-14. It does not ask whether, with a letter, Mr. Kumar would have gone to trial on Counts 1 and 2.

The Government answers that question for the first time on appeal, relying on "overwhelming and independent evidence of Kumar's guilt." Mot. 7. Its support is its own background section, drawn from the presentence report. Nothing in the record establishes that the evidence was independent. The record points the other way. Counsel told the district court that the primary evidence came from Mr. Kumar's own statements and devices (ECF 75 at 2); the Government says he was a cooperating witness until February 27, 2020 (ECF 122 at 14 n.5); and the court found that what he said in his last session was "the starting point" of the investigation of him (ECF 130 at 20). Whether the Massachusetts drug case could have been brought or proved without Mr. Kumar's own proffered statements and devices is a factual question. No court has decided it, and a motion for summary affirmance cannot.

C. The facts that matter were never developed. Judge Wolf describes the sessions two ways: eleven sessions, "including in the District of Massachusetts" (ECF 130 at 3), and a "single proffer session with federal authorities in Massachusetts" on February 27, 2020 (*id.* at 19). Which statements were made, to whom, in which district, under what protection, and which of them the Government

used are facts that no one found. The Government cannot find a signed copy of the one letter that exists (ECF 122 at 3 n.2). Judge Wolf held that Mr. Kumar had not shown the Rhode Island letter bound Massachusetts prosecutors (ECF 130 at 14), even though that letter promises that no statement will be used "in the case-in-chief of *any* criminal case." (ECF 122-1 ¶ 1 (emphasis added).) No hearing was held on what the prosecutors agreed or understood. The Government itself recognized that if any issue was live it "will need to speak with and to obtain evidence from Kumar's former counsel." ECF 122 at 17-18.

Section 2255(b) requires a hearing "[u]nless the motion and the files and records of the case conclusively show that the prisoner is entitled to no relief." 28 U.S.C. § 2255(b). The Government's motion does not mention the hearing requirement.

D. The "clear error" standard the Government cites does not fit. The Government says Mr. Kumar must show "clear error" in the district court's prejudice findings, citing *Dugas v. Coplan*, 506 F.3d 1, 3 (1st Cir. 2007). Mot. 7. *Dugas* is a state-prisoner habeas case in which the district court held its own evidentiary hearing. It explains that deference to findings applies "[w]hen the district court has held an evidentiary hearing and made its own determinations as to the weight of the evidence and the credibility of witnesses," and that the standard of review for a mixed question such as prejudice "depends, in the last analysis, on the extent to which a particular question is fact-dominated or law-dominated." *Id.* (quoting *Pike v. Guarino*, 492 F.3d 61, 68 (1st Cir. 2007)). Here there was no hearing, no testimony, and no credibility finding. The Court reviews the ruling on

the same paper record the district court had.

E. The pre-indictment delay claim is also certified and is not "plainly waived." Mr. Kumar argued below that counsel's ineffectiveness explains why the delay claim was not pursued. ECF 120. The Government's own account of the withdrawal is that Mr. Kumar wrote to the court "explaining explicitly that he wanted to withdraw his motion to dismiss and to plead guilty because he believed that his guideline sentencing range was only 15-20 months." ECF 122 at 6 (Ex. C). He was sentenced to 87 months. Whether a withdrawal made on that belief, and on counsel's advice, was knowing and intelligent is the question *Tollett v. Henderson*, 411 U.S. 258, 267 (1973), leaves open to a defendant who pleads guilty on counsel's advice: he "may only attack the voluntary and intelligent character of the guilty plea by showing that the advice he received from counsel was not within the standards set forth in *McMann*." The Government's motion does not address that. Judge Kelley also found that "[r]easonable jurists could disagree with [the district court's] conclusion about the effect of the COVID-19 pandemic and its effects on prosecutorial delay." ECF 141 (Ex. B).

F. Scope of the certificate. Mr. Kumar does not ask the Court to decide the scope of the certificate of appealability on this motion, and does not waive any right on that question. Judge Wolf's order of August 28, 2025 states that "[a] Certificate of Appealability of the denial of Kumar's 2255 Motion is hereby ISSUED." ECF 130 at 22 (Ex. A). Judge Kelley's order of June 25, 2026 certified two issues. ECF 141 (Ex. B).

V. CONCLUSION

Mr. Kumar respectfully asks the Court to: (1) deem this response timely or, to the extent necessary, grant leave to file it out of time; (2) deny the Government's motion for summary disposition; (3) upon denying it, lift the stay and set a briefing schedule for the Government's brief; and (4) in the alternative, vacate and remand for an evidentiary hearing under 28 U.S.C. § 2255(b) on the proffer-protection claim.

Respectfully submitted,

_____

Manish Kumar, pro se
Fed. Reg. No. 83763-053
FCI Fort Dix
P.O. Box 2000
Joint Base MDL, NJ 08640-0000

Dated: _____, 2026

CERTIFICATE OF COMPLIANCE

This document complies with the type-volume limit of Fed. R. App. P. 27(d)(2)(A) because, excluding the parts exempted by Fed. R. App. P. 32(f), it contains 2473 words, as counted by word-processing software. It complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it is prepared in a proportionally spaced typeface (Times, 14 point).

_____

Manish Kumar, pro se
Dated: _____, 2026

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I, Manish Kumar, certify that on _____, 2026, I deposited the foregoing document, with its exhibits, in the internal legal mail system of FCI Fort Dix, New Jersey, with first-class postage prepaid, addressed to the Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley United States Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210 (original and three copies). On the same date and in the same manner I served a copy on the following persons at the following address: Donald C. Lockhart and Kriss Basil, Assistant United States Attorneys, United States Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

I declare under penalty of perjury that the foregoing is true and correct. 28 U.S.C. § 1746; Fed. R. App. P. 25(a)(2)(A)(iii), 25(d). Executed on _____, 2026.

_____

Manish Kumar